

WAFAQI MOHTASIB (OMBUDSMAN)'S SECRETARIAT

ISLAMABAD

In exercise of the powers conferred by clause (11) of Article 10 of the Establishment of the Office of Wafaqi Mohtasib (Ombudsman) Order, 1983 (P.O. No. 1 of 1983), the Mohtasib is pleased to make the following regulations, namely:—

CHAPTER-I

PRELIMINARY

1. Short title and commencement — (1) These regulations may be called the Wafaqi Mohtasib (Investigation and Disposal of Complaints) Regulations, 2013.

(2) They shall come into force at once.

2. Definitions.— (1) In these regulations, unless there is anything repugnant in the subject or context,

- (a) “Article” means an Article of the Order;
- (b) “Authorised Officer” means an officer of the Office authorised by the Mohtasib for admission or rejection of complaints at the preliminary-examination stage;
- (c) “complaint” means a complaint received for investigation under the Order;
- (d) “Investigating Officer” includes an Advisor, Associate Advisor, Consultant or any other Officer at the head office or the Regional Offices, assigned the duties of investigation of complaints.
- (e) “disposal” means the completion of all proceedings of a complaint;
- (f) “examination” means scrutiny of complaints by the Registrar or Authorised Officer at the preliminary stage or by the Investigating Officer, on commencement of investigation;
- (g) “Form” means a form appended to these regulations;
- (h) “Head Office” means the principal seat of the Office at Islamabad;
- (i) “hearing” means the process of ascertaining facts by oral hearing of one or all of the parties, including examination of the record and spot inspection;
- (j) “investigation” means inquiry and investigation of allegations raised in a complaint till its disposal;
- (k) “Legal expert” means an Advisor, Associate Advisor, Consultant or any other officer having qualifications and experience in Law and duly authorized to deal with the legal aspects of the findings, decisions, recommendations and other legal matters of the Office.
- (l) Means of Communication includes transmission of information by post, fax, e-mail, SMS, phone, delivery through a despatch rider, notice in the newspaper or any other known means of conveying a message;
- (m) “Order” means the Establishment of the Office of Wafaqi Mohtasib (Ombudsman) Order, 1983 (P.O. No. 1 of 1983);
- (n) “Act” means the Federal Ombudsmen Institutional Reforms Act, 2013 (XIV of 2013)
- (o) “Record Room” means the record room at the Head Office where the files are consigned after disposal;
- (p) “Regional Offices” means the Regional Offices established at Lahore, Karachi, Peshawar, Quetta, Sukkur, Multan, Faisalabad and Dera Ismail Khan or at any other place which may be established under clause (4) of Article 9;
- (q) “Registrar” means Registrar of the Office and includes a Deputy Registrar, Assistant Registrar or any other officer authorized to perform functions of the Registrar;
- (r) “Registry” means an office in the Head Office or Regional Offices where the complaints are presented or received;

- (s) “Secretariat” means the entire establishment of the Office of Mohtasib including the Head Office and Regional Offices;
 - (t) “Section” means a section of the Federal Ombudsmen Institutional Reforms Act, 2013;
 - (u) “Secretary” means the Secretary of the Secretariat.
 - (v) “Principal Officer” means an officer authorised by the Agency to receive the notice for submission of reports.
 - (w) “Implementation Officer” means an officer responsible for keeping close liaison with the Agencies and Investigating Officers of that region to monitor the implementation of findings of Mohtasib; and
 - (x) “Party” means the complainant, Agency or both.
- (2) All other terms and expressions used in these regulations but not defined hereinbefore shall have the same meanings as have been assigned to them in the Order or the Act.

CHAPTER-II

PROCEDURE FOR REGISTRATION OF COMPLAINTS

3. Presentation of complaints. — (1) A complaint written in English or Urdu or any regional language may be presented at the Head Office or any of the Regional Offices by the complainant personally or through his representative or may be sent by post, courier service, fax, e-mail, online or any other means of communication.

(2) The territorial jurisdiction of the Head Office and Regional Offices shall be as specified in the Schedule to these regulations:

Provided that the Mohtasib may direct that a complaint falling within territorial jurisdiction of Head Office or any Regional Office may be investigated at another Regional Office or the Head Office.

(3) Each complaint shall be preferably made on the format as set out in Form A or in the manner thereof in accordance with the instructions attached thereto.

(4) Where a complaint is not made on the format set out in Form A, it shall be accompanied by a solemn affirmation that —

- (a) the allegations contained in the complaint are correct and true to the best of knowledge and belief of the complainant;
- (b) previously no complaint on the subject was filed at any Registry; and
- (c) no suit, appeal, petition or any other judicial proceedings, in connection with subject-matter of the complaint, is pending before any court, tribunal or board.

(5) On receipt of a complaint, the concerned official in the Registry shall enter particulars of the complaint in the diary register giving it a diary number, issue acknowledgement thereof to the complainant and forward it to the Registrar.

(6) The official receiving the complaint shall assist the complainant in drafting the complaint and filling the Form A, if such assistance is required. He shall also translate the complaint in English/ Urdu if it is written in any of the regional languages.

4. Examination by the Registrar.— (1) The Registrar shall on receipt of the complaint from the Registry,—

- (a) allot a registration number to the complaint on Complaint Management Information System (CMIS);
- (b) examine the complaint alongwith the documents attached thereto;
- (c) analyse main points of the complaint;
- (d) enter the main grievances on Form B; and
- (e) forward the complaint for admission or rejection by the Mohtasib, or the Authorised Officer.

(2) Where the Registrar finds that further information, verification of facts or documents are required, he may ask the complainant for provision of such information, verification of facts or documents.

5. Admission and rejection of complaints at preliminary stage.— (1) Where the grievance of a complainant against an Agency *prima facie* amounts to mal-administration and the complaint is not incompetent under paragraph (a), (b) or (c) of the proviso to clause (1) of Article 9 or clause (2) thereof and is not barred under the provisions of clause (2) or clause (3) of Article 10, the Mohtasib, the Registrar or any other Authorised Officer, as the case may be, may admit the complaint for investigation.

(2) Where, *prima facie*, a complaint is *not admitted* under paragraph (a), (b) or (c) of the proviso to clause (1) of Article 9 or clause (2) thereof or is barred under clause (2) or clause (3) of Article 10 or does not require any investigation for any other reason, the Mohtasib, the Registrar or, as the case may be, the Authorised Officer may reject the complaint in *limine* and inform the complainant accordingly as per format set out in Form A-I.

Provided that if the complaint is written in a language other than English, the letter of intimation shall be in Urdu in the format set out in Form A-II.

Provided further that where the allegations contained in the complaint do not fall within the jurisdiction of Mohtasib but such allegations constitute mal-administration of an agency as defined in the Laws relating to any other Federal or Provincial Ombudsman, such complaint may be forwarded by the Registrar to the concerned Ombudsman under intimation to the complainant.

Provided further that Mohtasib or a member of the Staff may exercise his power under Article 33 to informally conciliate, amicably resolve, stipulate, settle or ameliorate any grievance without written memorandum and without the necessity of docketing any complaint or issuing any official notice.

(3) Where the complaint is admitted under sub-regulation (1), the Registrar shall issue an acknowledgement of the receipt of the complaint to the complainant in the format set out in Form A-III or A-IV, as the case may be and pass it on within twenty-four hours to the Investigating Officer authorised to investigate into complaints against an Agency.

(4) Where a complaint is rejected *in limine*, the Registrar shall inform the complainant of the reasons for rejection of the complaint as per sub-regulation (2) and consign the file to the Record Room.

6. Presentation of complaints to Mohtasib and personal hearings.— (1) The Mohtasib may hold personal hearings at the time of presentation of complaints on such dates and time as he may specify.

(2) Where a complainant desires to present the complaint in person to the Mohtasib, he shall, in the first instance, present it to the Registrar at the Head Office or the Registrar at the Regional Office, at least two hours before the time of hearing fixed by the Mohtasib under sub-regulation (1).

(3) The Registrar shall record particulars of the complaint in the format as set out in Form C and place the complaint before the Mohtasib for personal hearing of the complainant and further orders.

(4) If the Mohtasib is not available on a particular date fixed for hearing, the complainant shall be informed of the next date and time of hearing.

(5) The orders of the Mohtasib made, under sub-regulation (3), on the complaints shall be recorded in the format as set out in Form B and C.

7. Complaints against Secretariat staff.— Complaints against any officer or member of staff of the Secretariat shall immediately be forwarded by the Registrar at the Head Office and the In-charge of the Regional Office, as the case may be, to the Secretary for orders by the Mohtasib.

8. Preliminary processing of complaints not to be delayed.— (1) The Registrar shall make every effort to ensure that the registration of complaints, their preliminary examination and submission to the Authorised Officer or Mohtasib, acknowledgement of its receipt after admission and entrustment to the Investigating Officers is not delayed.

(2) The Authorised Officer at the Head Office and the in-charge of each Regional Office, shall personally ensure speedy processing of complaints before entrusting them to Investigating Officers for investigation.

9. Institution and disposal statement .— The Secretary shall, by the tenth day of each month, submit to the Mohtasib, in the format as set out in Form D, a statement relating to the institution and disposal of complaints for and upto the end of the preceding month.

CHAPTER-III

PROCEDURE FOR PROCESSING OF COMPLAINTS BY INVESTIGATING OFFICERS

10. Entrustment of complaints to Investigating Officers.— (1) For the purpose of investigation of the allegations made in the complaint, the Mohtasib may, by order in writing, generally or in a particular case, authorise any officer of the Office to exercise the powers under clauses (1) and (3) of Article 14.

(2) A complaint received in Head Office or any Regional Office against an Agency, not located within its territorial jurisdiction, shall be sent for investigation to the Regional Office or the Head Office of appropriate territorial jurisdiction:

Provided that the Mohtasib may direct that a complaint may be investigated by a particular Investigating Officer posted at the Head Office or any Regional Office.

11. Temporary Injunctions.— (1) Subject to guidelines issued from time to time, on a complaint supported by an application and affidavit for grant of temporary injunction, approval of the Mohtasib shall invariably be obtained by Investigating Officer and communicated to the Agency and complainant.

(2) The injunction under sub-regulation (1) shall not ordinarily extend beyond seven days.

(3) After hearing the parties, if so required, Investigating Officer may, with the approval of the Mohtasib grant temporary injunction for a period not exceeding sixty days.

(4) Where an injunction has been issued under sub-regulation (3), efforts shall be made to finalise the proceedings within the said period of sixty days.

12. Process of Investigation. — (1) The investigating officer shall be required to immediately examine the complaint (received by him under regulation-5) as to whether:-

- (a) the complaint needs to be investigated; or
- (b) a report of the agency may be called; or
- (c) the matter alleged in the complaint requires spot inspection or inspection of record of the agency or the hearing of the parties.

(2) If the investigating officer finds by proper application of mind and keeping in view the law/rules of the agency and the circumstances leading to the complaint that this case may not be investigated for any of the reasons contained in regulation 23(1)(a),(b),(i),(j),(k),(l), (m),(n),(o),(p),(r),(u),(v)and(w) he shall prepare draft closure findings as per format set out at Form E-I and with the approval of the Mohtasib, inform the complainant accordingly as per format set out in Form F.

(3) If the investigating officer finds that the complaint is not supported by Form-A or the relevant documents or information he may inform the complainant to do so.

(4) If the complainant does not respond to the letter under sub-regulation (3) or does not furnish documents or information the complaint may be closed under regulation 23(1)(c) &(s) with the approval of Wafaqi Mohtasib and inform the complainant accordingly.

(5) If the investigating officer feels that the matter is fit to be investigated and that a report from the agency in respect of the allegations contained in the complaint may be called for he shall issue a notice to the agency in writing not later than two days of the receipt of the complaint by the Investigating Officer:

Provided that in emergent cases requiring immediate action or to avoid recurrence of any mal-administration, the report may be called for through telephone, fax, e-mail or any other means of communication.

(6) The notice for submission of report under clause (4) of Article 10 shall be addressed to the principal officer of the Agency or any officer authorized by the principal officer to receive the notice and to any other officer who is alleged in the complaint to have taken or authorised the action complained of.

(7) The notice calling for a report shall accompany a copy of the complaint or relevant extract of the complaint highlighting the grievances of the complainant, the alleged nature of mal-administration and the relief sought by the complainant alongwith all relevant documents attached with the complaint.

(8) The report shall be required to be submitted within a maximum period of fifteen days.

(9) Where the Agency seeks extension of time in submission of report, such extension shall not exceed seven days.

(10) If the investigating officer feels that there is urgent need of spot inspection or inspection of documents or hearing he may proceed in accordance with regulation 17.

13. List of principal officers of the Agencies and their authorized officers.— (1) The Authorised Officer at the Head Office and officers-in-charge of the Regional Offices shall maintain a list of principal officers of Agencies or, as the case may be, their officers authorized to receive notices on his behalf.

(2) The Co-ordination Wing at the Head Office shall maintain a list of principal officers and their authorized officers, if any, throughout Pakistan and shall update it each month.

(3) The Investigating Officers shall bring to the notice of the Authorised Officer and Co-ordination Wing at the Head Office and officers-in-charge of the Regional Offices whenever any information is received by them in respect of any change of the principal officer of the Agency or his authorized officers.

14. Agency's report on allegations of the complainant.—(1) Where the Agency reports that the grievance of the complainant already stands redressed or relief has been provided to him on receipt of the complaint from Mohtasib's Office, the complaint may be disposed of under paragraph (e) of sub-regulation (1) of regulation 23.

(2) In a case where the Agency reports that for the relief sought the complainant was required to fulfil certain procedural requirements, the complainant shall be directed to complete such requirements and, if no information is received by the date fixed by the Investigating Officer, it shall be presumed that the complainant does not intend to pursue the matter further and the complaint may be disposed of under paragraph (g) of sub-regulation (1) of regulation 23.

(3) Where the Agency does not submit the report within the statutory period, the Investigating Officer shall within two days after the due date, issue a notice to the Agency requiring it to depute an officer fully conversant with facts of the case to appear before him within fifteen days on the date and time specified in the said notice alongwith complete record of the case and produce all such documents, including law, rules, regulations or instructions which he intends to rely upon for meeting the allegations made in the complaint.

(4) A copy of the notice, referred to in sub-regulation (3), shall also be sent to the complainant giving him the option to appear before the Investigating Officer on the date and time specified in the said notice and to produce all such documents which he intends to rely upon in support of his allegations made in the complaint.

15. Rejoinder and hearing of cases.— (1) Where the Agency, in its report, contests the allegations made by the complainant and the complaint can be resolved on the basis of available record, the Investigating Officer shall within two days of receipt of the report send it to the complainant to submit his rejoinder on or before the date of hearing. If the complainant fails to submit the rejoinder within the specified or extended period, the Investigating Officer shall dispose of the complaint on the basis of available record.

(2) In other cases, if the Investigating Officer is of the view that hearing is required, he shall within two days of the receipt of report issue a notice to the Agency requiring it to depute an officer fully conversant with facts of the case to appear before him within fifteen days on the date and time specified in the said notice, with complete record of the case and to produce all documents, including law, rules, regulations or instructions, which he intends to rely upon for meeting the allegations made in the complaint.

(3) A copy of the notice referred to in sub-regulation (2), shall also be sent to the complainant alongwith report of the Agency giving him the option either to send his rejoinder or appear before the Investigating Officer on the date and time specified in the said notice and to produce all said documents which he intends to rely upon in support of his allegations made in the complaint. Extension upto seven days may be given on request of either the complainant or the Agency where reasonable cause is shown.

(4) Where the officer, referred to in sub-regulation (3) of regulation 14 and sub-regulation (2) of regulation 15, does not appear before the Investigating Officer on the appointed date, proceedings for exercise of the powers of a Civil Court under the Code of Civil Procedure, 1908 (Act V of 1908), as specified in clause (1) of Article 14, of P.O..1 of 1983 to compel appearance and production of documents may be initiated.

(5) The competent authority of the Agency shall be required to take disciplinary action against the concerned officer, who fails to submit report on the complaint under sub-regulation (5) of regulation 12 or to appear for hearing before the Investigating Officer on the appointed date under sub-regulation (3) of regulation 14 and sub-regulation (2) of regulation 15, and inform the Mohtasib within fifteen days of the action so taken.

(6) Where the Agency makes a request that any portion of the report or any document annexed to its report may be kept confidential, such portion of the report or, as the case may be, documents shall not be sent to the complainant unless the Mohtasib decides otherwise.

16. Conduct of hearing.— (1) Without prejudice to power of the Investigating Officer to summon any officer by name from the Agency, the Agency shall ordinarily be asked to depute an officer fully conversant with facts of the case for the purpose of hearing:

Provided that heads of the Ministries, Divisions or departments or the officers of the rank of Additional Secretary and above shall be summoned only with approval of the Mohtasib.

(2) The representative of the Agency and the complainant, wherever deemed appropriate, may not be called for hearing on the same day if a confrontation or misunderstanding is anticipated.

(3) The hearings shall not be adversarial but in the nature of a conference for ascertaining facts, practice and procedures of the Agency relevant to the investigation and efforts shall be made to resolve the matter through informal discussion and persuasion.

(4) The mutual agreement or undertaking given by parties may be recorded and signed by the persons representing the parties.

(5) If for any reason, the hearing is to be adjourned or fixed for another date or time, the Investigating Officer shall inform both the parties well in time of the next date of hearing and time thereof.

17. Inspections.— (1) Where an inspection of a place, or record at a particular place, or site, is necessary, the Investigating Officer shall, with the approval of the Mohtasib, proceed for the inspection of the spot or, as the case may be, record after due intimation to the Agency:

Provided that if the place of such inspection falls within territorial jurisdiction of any other Regional Office or Head Office, the case file may, with the approval of the Mohtasib, be sent to such Regional Office or Head Office, highlighting the points in issue involved in the matter for carrying out inspection of the site or record, as the case may be.

(2) The file of the case shall, after inspection of the spot or, as the case may be, record with the report of such inspection, be returned to the Investigating Officer dealing with the complaint.

18. Requisitioning of record of Agency.— Where it is expedient to retain any portion of the record of an Agency relating to the complaint, produced by it under clause (9) of Article 10 and clause (2) of Article 14, an authentic copy thereof may be prepared and placed on the file for consideration.

19. Visitation of the Agency's offices.— For the purpose of creating an environment of mutual trust for expeditious disposal of complaints, the Investigating Officer may visit the Agency and discuss one or more cases relevant to the Agency after due intimation to the principal officer of the Agency.

20. Information to the complainant.— At any stage during the investigation, where the Investigating Officer desires to seek clarification on certain issues from the complainant, he may ask him on telephone or through a letter to appear before him and, likewise, where the complainant approaches him to ascertain the position of his case, he shall be briefed about the updated position of the case.

21. Transfer of cases.— (1) Where an Agency complained against is located within the territorial jurisdiction of any other Regional Office or the Head Office, the Mohtasib, may transfer such complaint to the concerned Regional Office or the Head Office, as the case may be.

(2) Whenever a case is transferred under sub-regulation (1), a brief summary of the proceedings conducted till the date of transfer shall be recorded on the order sheet.

22. Maintenance of files.— (1) The Investigating Officer shall ensure that record of each complaint is properly maintained and the proceedings reflected in chronological order in the order sheet in the format as set out in Form E.

(2) The case file shall contain following particulars on its cover, namely:-

- (a) registration number of the complaint;
- (b) date of receipt of the complaint by the Investigating Officer;
- (c) complainant's name;
- (d) name of the Agency;

- (e) brief subject of the complaint;
 - (f) whether the file contains correspondence or noting or both; and
 - (g) date of consignment to the Record Room.
- (3) The complaint alongwith cover sheets, consisting of Forms A, B and C, shall be tagged on the right hand side of the file, whereas the order sheet in Form E shall be placed on the left hand side of the file.
- (4) The pages should be numbered in chronological order with the last numbered page appearing on the right hand side on the file.
- (5) The order sheet in Form E shall contain record of actions taken with dates for further processing and shall be used as noting portion of the file for obtaining orders, instructions and directions of the Mohtasib.

CHAPTER-IV

PROCEDURE FOR DISPOSAL OF COMPLAINTS

23. Completion of Investigation.—(1) The investigation of a complaint shall, with the approval of the Mohtasib, be closed when it is found that—

- (a) the Agency alleged to have committed mal-administration does not specifically fall within jurisdiction of the Mohtasib; or
- (b) the Agency is not at fault as a particular procedure was to be adopted or formalities were to be followed by the complainant for redressal of his grievances; or
- (c) the complainant fails to furnish necessary information or supply relevant documents or does not respond despite reminders or fails to attend hearings despite notices and it is not possible to decide the complaint on the basis of the available record; or
- (d) the relief had already been provided before the complaint was lodged and the complainant confirms the redressal of his grievances; or
- (e) the complainant was entitled to relief or partial relief and the Agency has accorded this after the complaint was lodged; or
- (f) the Agency during the hearing of the complaint or its processing undertakes to provide the relief sought; or
- (g) the complainant is satisfied with the report submitted by the Agency or does not wish to pursue the case any further or withdraws the complaint; or
- (h) the complainant and the representative of the Agency mutually agree on the redressal of the grievances through consent findings; or
- (i) the subject-matter of the complaint does not fall within purview of the Order; or
- (j) the subject-matter of the complaint was *sub-judice* before a court of competent jurisdiction, tribunal or board on the date of presentation of the complaint; or
- (k) the complaint concerns matters relating to the Agency in which the complainant is or has been working and the grievance relates to his service therein; or
- (l) the complaint is time barred as it was made after three months from the day on which the complainant first came to know of the matter and there are no special circumstances to condone the delay; or
- (m) the complaint is premature as the cause of action has not yet arisen; or
- (n) the complaint does not disclose any cause of action to justify the investigation; or
- (o) the subject-matter of the complaint is the same as of the complaint that has already been disposed of by earlier findings; or
- (p) Omitted

- (q) the complaint involves examination of witnesses, detailed interpretation of laws, rules, regulations or different clauses of contracts and their *inter-se* relationship for which the proper forum is a court of competent jurisdiction and not the Office; or
- (r) the facts of the case are disputed by the parties and to establish the correct position requires a detailed examination of both documentary and oral evidence and its assessment for which the proper forum is a court of competent jurisdiction and not the Office; or
- (s) the subject-matter of the complaint has already been adjudicated by a court, tribunal or a board of competent jurisdiction; or
- (t) Omitted
- (u) the original findings, in respect of which the implementation process is in progress, have been set aside by the President in accepting representation of the Agency under Article 32; or
- (v) the complaint has been made by a person who is not an aggrieved person; or
- (w) the complaint is anonymous or pseudonymous; or
- (x) the Agency is not at fault as the redressal of the grievance of the complainant by it was to follow an action to be taken by another Agency to which a reference for the purpose has already been made; or
- (y) a review petition is filed by an aggrieved party after expiry of statutory period of thirty days of the findings; or
- (z) it warrants under the Order closure for a valid reason not covered by any of the preceding clauses.

(2) Where a complaint is closed under sub-regulation (1), it may, on sufficient reasons being shown by the complainant, be re-investigated.

(3) The complaint shall, on completion of investigation and with approval of the Mohtasib, be rejected when it is found that no mal-administration was involved in the case or the complainant is not entitled to the relief claimed.

(4) The complaint shall, on completion of investigation and with the approval of the Mohtasib, be accepted and recommendations for implementation issued under clause (1) of Article 11 when it is found that the Agency was responsible for mal-administration and injustice to the complainant and such mal-administration or injustice needs redressal.

(5) A complaint shall be disposed of within sixty days of its registration.

24. Findings of the Mohtasib — (1) In all cases under sub-regulation (1) of regulation 23, where the investigating officer does not feel the necessity of investigation, he shall prepare draft closure findings as per format set out at Form E-I and with the approval of Mohtasib inform the complainant through a letter on format as set-out in Form F.

(2) In all cases where investigation has commenced but further investigation of a complaint is closed under sub-regulation (1) of regulation 23, the investigating officer shall with the approval of Mohtasib, by a letter in Form F, inform the complainant and the Agency.

(3) In all cases where an investigation has been completed under sub-regulation (3) or (4) of regulation 23 and it is proposed to reject the complaint or accept it and make recommendations for implementation, the Investigating Officer shall prepare draft findings on either of the formats as set out in Form F-I.

(4) The draft findings shall be submitted to the Mohtasib generally within seven days of completion of investigation and shall be simple, impersonal, persuasive and arranged in paragraphs duly numbered in chronological order.

(5) The draft findings shall be submitted to the Mohtasib through his Secretary and also be submitted on CMIS

(6) In all cases where the complaint is rejected on merit the findings shall, after approval by the Mohtasib, be communicated to the complainant and the Agency involved in the format as set out in the Form F-II.

(7) In all cases where the complaint is accepted the findings shall, after approval by the Mohtasib, be communicated to the complainant and the Agency involved in the format as set out in Form F-III.